

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 8, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**ELTON EALY v. GENERAL MOTORS, LLC
Case No. CU25-03660**

Demurrer to First Amended Complaint

TENTATIVE RULING

On its own motion the court continues this matter to September 11, 2026 at 9:00 A.M. in Department 3.

**OWENS v. FLANDEZ
Case No. CU25-07041**

Motion to Compel Plaintiff's Deposition Attendance, Testimony, and Document Production, and Request for Monetary Sanctions

TENTATIVE RULING

The Motion is GRANTED as follows:

(1) Plaintiff and Cross-Defendant JEREMY OWENS ("Plaintiff ") shall appear for an in-person deposition no later than 15 calendar days from the date of this Order;

(2) Plaintiff's in-person deposition shall proceed at Emerick & Finch Court Reporters, located at 2333 San Ramon Valley Blvd #425, San Ramon, California;

(3) Plaintiff shall appear and answer all non-privileged questions posed at the deposition;

(4) Within 10 calendar days of this Order, Plaintiff shall produce all documents responsive to the requests set forth in the "Notice of Time and Place of Taking Deposition of Plaintiff Jeremy Owens with Requests for Production of Documents" ("Deposition Notice"), served on Plaintiff on May 22, 2026.

(5) Within 10 calendar days of this Order, Plaintiff shall pay monetary sanctions to Defendant and Cross-Complainant JEANNE FLANDEZ in the amount of \$14,543.00.

Failure to comply with this Order, or any portion thereof, may result in the imposition of additional sanctions pursuant to the applicable rules of civil procedure, including monetary sanctions, evidentiary sanctions, issue sanctions, terminating sanctions, and/or contempt proceedings.

**ASHFORD v. NEWREZ LLC dba SHELLPOINT MORTGAGE SERVICING, et al.
Case No. CU26-00612**

1) Motion to Compel Defendant's Initial Responses to Special Interrogatories, Set One, Nos. 1-17; and to Confirm Waiver of Objections

2) Motion for Order Deeming Requests for Admission, Set One, Admitted and for Monetary Sanctions

TENTATIVE RULING

1) The Motion to Compel is Granted, in part. To the extent it has not already responded. Defendant shall serve verified, code-compliant Responses to Plaintiff's Special Interrogatories, Set One, Numbers 1 through 17, at or before 5:00 p.m. on September 25, 2026. No other orders are made with respect to this motion. The parties are encouraged to be more cooperative in the future when working together, particularly on routine matters such as extension requests.

2) The Motion for Order Deeming Requests for Admissions and Request for Sanctions is DENIED.

Prior to the hearing responses in substantial compliance were served.

Join ZoomGov Meeting

<https://www.zoomgov.com/j/1602210102?pwd=emlhR29SczExam56NFFqWHFvSitmZz09>